

The Case Management Conference is continued to September 24, 2026 at 1:30 p.m. to be heard along with the Motion to Compel Arbitration.

In California, a waiver of attorney client privilege/work product doctrine may be accomplished by: 1) disclosing privileged communication in a non-confidential context (Evid. Code §912 (a).; 2) failing to claim privilege in a proceeding where the holder has the legal standing and opportunity to do so (*Ibid.*); and 3) failing to assert the privilege in a timely response to inspection demand. (Code Civ. Proc. §2031.300(a); *see also Catalina Island Yacht Club v. Sup. Ct.* (2015) 242 Cal.App.4th 1116, 1126.) The failure to include an objection based on attorney client privilege/work product doctrine in the initial responses to discovery results in waiver. (*Scottsdale Ins. Co. v. Sup. Ct.* (1997) 59 Cal.App.4th 273, 274.) The objection must be specific and, if an objection is based on a claim of privilege, the particular privilege invoked shall be stated. (Code Civ. Proc. §2031.240(b)(2).) The objection must expressly state if it is based on the claim that the information sought is protected work product. (*Ibid.*) Objections that are not asserted in the response are not preserved. (*Scottsdale Ins. Co v. Sup Ct.*, 59 Cal.App.4th at 268.) When a party fails to serve timely responses to discovery, that party waives any objection to the demand, including one based on privilege or the protection of work product. (Code Civ. Proc. §2031.300(a).) Pursuant to section 2031.300(a) a court, on motion, may relieve a party from the waiver of attorney client privilege/work product doctrine upon its determination that 1) the party has subsequently served a response that is substantially compliant with the relevant statute, and 2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. Here, the court has already ruled on the question of whether there has been waiver of the attorney-client privilege or work product doctrine as of July 31, 2026.

It appears from the arguments presented here there is a conflation between the waiver of objections for failing to either a) assert the privilege/doctrine in the response or b) not providing responses timely or without authorized extension and waiving the privilege/doctrine in itself. Where there has been inadvertent disclosure of privileged documents, and that such

disclosure does not waive attorney client/work product doctrine protection. In *Rico v. Mitsubishi Motors Corp* (2007) 42 Cal. 4th 807, the California Supreme Court held that when a lawyer “comes into possession of materials that clearly appear to be protected by the attorney client privilege or work product doctrine and it is reasonably apparent that the materials were disclosed without the holder of the privilege intending to waive it, the lawyer receiving the materials is prohibited from using them.” (*Id.* at 817.) In *State Comp. Ins. Fund v. WPS, Inc.* (1999) 70 Cal. App. 4th 644, counsel for WPS received copies of State Compensation Insurance Fund (State Fund) internal documents containing privileged attorney client communications because State Fund’s outside attorneys inadvertently sent them along with other documents produced for use at trial. WPS’s counsel gave some of the privileged documents to an expert witness who then provided them to another lawyer who was adverse and pursuing a different claim against State Fund. When the error was discovered, and State Fund requested WPS counsel return the documents, they refused. The trial court found such conduct was in bad faith. State Fund involved a case where over 7000 pages of documents were produced. The rule articulated therein addressed the practical issue that modern document production may involve massive numbers of documents. “An attorney has an obligation not only to protect his client’s interests but also to respect the legitimate interests of fellow members of the bar, the judiciary, and the administration of justice.” (*Kirsch v. Duryea* (1978) 21 Cal. 3rd 303, 309.)

Here the subject documents were sent as part of a document production request, unlike that in *Rico*, where a document was apparently left behind after deposition and came into the possession of the opposing party. To the extent the documents at issue were the subject of the July 31, 2026 order were deemed to have been produced inadvertently and thus attorney-client privilege /work product protection has not been waived remains true. What also remains true is that objection based on this privilege/doctrine has not been asserted or the right to object on this basis has been lost. To the extent that Respondent has not moved to be relieved of the waiver of objections the court will not now address such relief.

While on July 31, 2026, this court ruled that inadvertent disclosure did not waive privilege, the failure to timely respond and assert timely objections does waive privilege. The failure to timely assert attorney-client privilege or work product protection in response to a

production demand results in waiver of the right to object to discovery by asserting the privilege.

Ms. Sims' May 12, 2026, discovery responses and document production were the subject of meet and confer between counsel as Petitioner's counsel noted in adequacies, but notably Ms. Modica did not waive the statutory deadlines for discovery (Modica Dec. ISO Reply, ¶4.) Absent an actual agreement to extend response deadlines, the deadlines for response remain, despite Respondent's counsel's interpretation that they had "moved the parties slightly away from the formalities involved with the Discovery Act." An extension is granted or it is not. Here, there was no extension of the timeliness of the responses. Similarly, Russell Enz failed to timely provide discovery responses or seek an extension of time to do so. As noted by statute, this automatically waives all objections, including those based on attorney-client privilege or work product doctrine, absent court order relieving a party of that waiver. No such relief has been sought here.

The court has already ruled on the argument based on inadvertent disclosure. Based on the declarations of counsel, Petitioner's counsel is in compliance with that order. Petitioner now seeks this court to determine whether the waiver pursuant to Code of Civil Procedure section 2031.300 of all objections, including those based on work product or attorney client privilege has occurred. The right to object to production of documents on has been lost as a result of a) failing to assert it or b) failing to provide timely responses.

Respondents are hereby ordered to comply with their verified discovery responses and permit inspection and copying of all responsive documents, and Respondents may not withhold any responsive documents under a claim of attorney-client privilege or work product protection.

As set forth in the Motion, Petitioner is entitled to monetary sanctions. (Code Civ. Proc., §§ 2023.030, subd. (a); 2023.010, subds. (e) & (h); 2031.320, subd. (b).) The Court awards Petitioner monetary sanctions against Respondents in the total amount of \$13,747.50 payable to Abbey, Weitzenberg, Warren & Emery PC within 10 days of notice of entry of this Order. Respondents have continuously failed and refused to acknowledge their waiver of the privilege, provide a privilege log, or offer any details demonstrating that the documents are actually protected from disclosure.